

25SMCV03096 25SMCV03096

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Case Number: 25SMCV03096 Hearing Date: August 5, 2026 Dept: M

CASE NAME: Sajid, v. Beverly

Hills Properties LLC, et al.

CASE NO.: 25SMCV03096

MOTION: Motion

for Attorneys' Fees

HEARING DATE: 8/5/2026

Legal

Standard

With respect to attorney fees

and costs, unless they are specifically provided for by statute (e.g., CCP §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.) The prevailing party on a contract, which specifically provides for attorney fees and costs incurred to enforce the agreement, is entitled to reasonable attorney fees in addition to other costs. (Civ. Code § 1717(a); CCP §§ 1032, 1033.5(a)(10)(A).) The court, upon notice and motion by a party, shall determine the prevailing party and shall fix, as an element of the costs of suit, the reasonable attorney fees. (Civ. Code § 1717(a), (b).) Any notice of motion to claim attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs. (CRC 3.1702; Gunlock Corp. v. Walk on Water, Inc.

(1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]" (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623 624.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Reg'l Planning Comm'n (1982) 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys' fees award].) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.¿(Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.)¿General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

"Under Code of Civil Procedure section 425.16, subdivision (c), any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees. The fee-shifting provision was apparently intended to discourage such strategic lawsuits against public participation by imposing the litigation costs on the party seeking to chill the valid exercise of the constitutional rights of freedom of speech and

petition for the redress of grievances. The fee-shifting provision also encourages private representation in SLAPP cases, including situations when a SLAPP defendant is unable to afford fees or the lack of potential monetary damages precludes a standard contingency fee arrangement.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.)

Analysis

Defendants Beverly Hills Properties

LLC and Diana Kleiner move for an award of attorneys' fees against Plaintiff Salman Sajid in the amount of \$24,389.00 and \$784.88 in costs.

At the prior hearing, the Court ordered a supplemental declaration on the fees incurred. Defense counsel filed a supplemental declaration on July 14, 2026. Based on counsel's experience and education, the declaration shows that counsel Austin J. Evans has a reasonable hourly rate of \$290.00, and that Greg A. Garbacz has a reasonable hourly rate of \$397.00. The verified time records demonstrate an initial lodestar of \$24,388.50 in attorney's fees and \$784.88 in costs, for a total of \$25,173.38 of fees and costs incurred in connection with the anti-SLAPP motion. (Evans Decl., Ex. A.) Plaintiff did not file a supplemental opposition as permitted. Thus, he failed to meet his burden specifically object to the time records.

On an independent review, the Court finds that some of the hours spent on the unopposed anti-SLAPP motion were unreasonable and excessive. For example, counsel Evans spent over 32.7 hours researching and drafting the anti-SLAPP, in addition to 3.9 hours analyzing the complaint and strategizing, 8.4 hours drafting the supporting declarations, and 5.3 hours filing and serving the anti-SLAPP. Spending more than 50 hours drafting the subject anti-SLAPP motion is facially excessive and unreasonable. Evans also claims 18.5 hours preparing for the hearing on the anti SLAPP. This amount is also facially excessive. The court also finds 6.4 hours drafting the attorneys' fees motion to be slightly excessive, especially in light of the inadequacy of the initial motion. Based on the totality of the record, the Court finds that a reasonable fee for Evans in connection with the anti-SLAPP motion would be \$5,800.00 accounting for a total of 20 hours of time. The Court otherwise finds Garbacz's rate requested fee of \$2,580.50 to be reasonable. Accordingly, the court finds that the total, reasonable lodestar award would be \$8,380.50.

Additionally, Defendants do not

explain the \$784.88 in costs. While they would be entitled to recovery of the motion costs, they would not be entitled to their initial appearance costs since there are remaining causes of action. Accordingly, the Court will only award \$120.00 in costs.

Accordingly, the motion is GRANTED
in the reasonable, total amount of \$8,500.50.